

SENATE No. 1348

The Commonwealth of Massachusetts

PRESENTED BY:

Robyn K. Kennedy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to enforce laws protecting worksite safety.

PETITION OF:

NAME:

Robyn K. Kennedy

DISTRICT/ADDRESS:

First Worcester

SENATE No. 1348

By Ms. Kennedy, a petition (accompanied by bill, Senate, No. 1348) of Robyn K. Kennedy for legislation to enforce laws protecting worksite safety. Labor and Workforce Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to enforce laws protecting worksite safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 29 of chapter 149 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting the following paragraph:-

3 A party to a contract for construction having a duty, whether by law or by contract, to
4 maintain a safe workplace or to comply with applicable safety standards, may not transfer the
5 responsibility to pay for, defend against, or provide insurance covering claims, liabilities, fines,
6 or damages to the extent caused by that party's breach of such duty. Any provision in a contract
7 for construction which purports to transfer any such responsibility shall be void and
8 unenforceable as against public policy.